

DATED May 1 **2026**

PLATFORM SERVICES AGREEMENT

between

SWIFTX DLT Pay Ltd
(“SwiftX Canada”)

and

MAL
(“CLIENT”)

PLATFORM SERVICES AGREEMENT

This Agreement is made and entered into on May 1 **2026** between:

PARTIES

SwiftX DLT Pay LTD is incorporated under the Alberta Business Corporations Act (ABCA) with a company number C100000502, whose registered office is 753 Kettles ST, Pincher Creek, Alberta, T0K1W0, Canada ("**SwiftX Canada**")

and

Mal Digital Ltd is incorporated under the Abu Dhabi Global Market with a company number 25182, whose registered office is Floor 21, Sky Tower, Shams Abu Dhabi, Al Reem Island, Abu Dhabi, UAE ("**Client**")

BACKGROUND

- (A) SwiftX Canada is registered with FINTRAC as a Money Services Business ("**MSB**") in Canada and in that capacity provides regulated payment services (digital assets and fiat funds).
- (B) SwiftX Meydan acts solely as the technology provider, operating the Platform and providing technical/operational support. SwiftX Meydan provides only non-regulated technology and operational support without engaging in, facilitating, intermediating, or enabling remittance, custody, dealing in securities or virtual assets, lending, or any financial services or activities under Applicable Laws.
- (C) SwiftX Canada has agreed to provide the Services in accordance with the terms of this Agreement.

AGREED TERMS

1. Definitions and Interpretation

1.1 Definitions.

The definitions and rules of interpretation in this clause apply in this Agreement:

Affected Party means a party that is prevented from or delayed in performing any of its obligations under this Agreement by a Force Majeure Event.

Affiliate means, in relation to a party, any entity that directly or indirectly controls, is controlled by, or is under common control with that party, where "control" means ownership of more than 50% of voting shares or equivalent.

Agent means a Party's employees, officers, representatives, agents, contractors or subcontractors.

Agreement means this document including any schedule or annexure to it.

API means 'Application Programming Interface' for Client to receive quotes and to send payment details / instructions.

Applicable Law means all applicable:

- (a) legislation including statute, statutory instrument, treaty, regulation, order, directive, bylaw and decree;
- (b) regulatory rules and license conditions relating to the parties or otherwise as issued by a Regulatory Authority;

- (c) judgments, resolutions, decisions, orders, notices or demands of a competent court, tribunal, regulatory body or governmental authority, in each case having the force of binding law and/or by which either Party is bound; and
- (d) industry guidelines or codes of conduct which are mandatory on the Parties in the jurisdiction from which the Services are provided.

Authorized Delegate means any Affiliate, agent, subcontractor, or third party appointed by SwiftX Canada to perform or assist in performing any obligations under this Agreement, provided such delegate meets applicable regulatory and operational standards.

Business means the provisions of ancillary financial services to Customers by Client.

Business Day means a day other than a Saturday, Sunday or public holiday in the UAE when banks in the UAE are open for business.

Confidential Information means the information that is proprietary or confidential and is either clearly labelled as such or identified as Confidential Information more fully in clause 17.

Corporate Payouts means any payment or disbursement that is:

- (a) initiated by, for, or on behalf of a corporate entity or business; or
- (b) made for business or commercial purposes (including payroll, vendor/supplier payments, contractor payments, treasury movements, bulk disbursements, or any similar corporate or commercial payouts), whether one-off or recurring.

Credentials means usernames, passwords, Client ID or any other codes that are issued to Client by SwiftX Canada to access the Services.

Customers means customers of Client who have been registered by Client to make use of Client's cross-border funds transfer services.

Dashboard means reporting dashboard used by Client to monitor the Services.

Developer Application means Client's website, any other subdomains of Client's website, any mobile application, including any other platform or medium through which Client wishes to use the Services.

Effective Date means the date of this Agreement.

Fees means the fees and charges payable by Client to SwiftX Canada under this Agreement and/or any Order Form.

Force Majeure Event means the occurrence of any of the following events or circumstances which are beyond the reasonable control of a party and which could not have been prevented by the exercise of reasonable care and skill of a party:

- (a) any act of state or exercise of sovereign, judicial or executive prerogative by any government or public authority, including expropriation, nationalization or compulsory acquisition or acts claimed to be justified by the executive;
- (b) any act of God;
- (c) any natural disaster or unusual or extreme weather conditions, including earthquake, lightening, flooding, fire, hurricane, typhoon, tidal wave, storm, volcanic eruption, chemical or radioactive contamination;
- (d) infectious diseases, pandemic or epidemic; and
- (e) any act of war, armed hostilities, invasion, armed conflict, revolution, civil commotion, terrorism or the threat of terrorism.

Fee means the fees payable by Client to SwiftX Canada for access to the Services for the Initial Term of this Agreement, calculated in accordance with Schedule 1.

General Limitation of Liability Cap means an amount equal to the greater of \$250,000 or three (3) times (x) the total amount payable by Client during the twelve (12) months immediately preceding the event giving rise to the claim, unless otherwise agreed between the parties in writing.

Go Live Date means the date falling one (1) week following the approval by SwiftX Canada and Client of the Services.

Good Industry Practice means the exercise of such degree of skill, diligence and foresight which would reasonably and ordinarily be expected from a skilled and experienced service provider engaged in the provision of services similar to those contemplated in this Agreement.

India Corporate Payouts means Corporate Payouts where the Recipient account is located in India and/or the payout is to an India-domiciled bank or payment account.

Initial Term means the period of two (2) years commencing the Effective Date.

Instruction Date means the time and date on which the Customer initiated the funds transfer request through the Business.

Intellectual Property Rights means in relation to a party, means inventions, patents, utility models, moral rights, registered designs, trademarks, service marks, domain names, trade and business names (including internet and email addresses), rights in computer software, applications for any of the foregoing, copyrights, unregistered designs, confidential information, know-how, trade secrets, database rights and all other intellectual property rights, in each case whether registered or unregistered, including all extensions and renewals and the goodwill attaching to any of them and applications for any of them and any right or form of protection of a similar nature and having equivalent or similar effect to any of them which subsist or will subsist now or in the future anywhere in the world.

Platform means the online software applications accessed via an API as provided by SwiftX Canada as part of the Services. The Platform comprises the API, Web Portal and Dashboard. As at the Effective Date of this Agreement, SwiftX Meydan owns the Platform and licenses to SwiftX Canada.

Recipients means the recipients of local fiat currency transfers initiated by Customers through the Business and executed using the Services.

Regulatory Authority means any regulatory, administrative, supervisory or governmental agency, body or authority (whether regional, national or international) to whose rules, regulations or guidance a party is, from time to time, subject or submits.

Renewal Period means the period described in 17.1.

Representatives means in relation to a party, its employees, officers, contractors, subcontractors, representatives and advisers.

Retail Payments means consumer / retail cross-border money transfers and remittances initiated by or on behalf of an individual (natural person) Customer for personal purposes (and not for business, trade, or corporate purposes).

Services means the non-regulated technology infrastructure for transmitting instructions related to fiat and/or digital-asset settlement reporting via APIs/Dashboards, provided under SwiftX Canada's Canadian MSB registration (as amended from time to time). Except as expressly specified in this Agreement, the Services do not include any custody of funds or assets, remittance activities, dealing in securities or virtual assets, lending, or any facilitation, intermediation, or enablement of financial activities under Applicable Laws.

SwiftX Canada Account means the secure SwiftX Canada account accessible to Client via the Platform which may be used to configure the Services.

SwiftX Canada Holdings means the digital assets temporarily facilitated by SwiftX Canada (via licensed partners) for immediate exchange instructions from Client in accordance with the terms of this Agreement, without any custody, fiduciary role, holding, or facilitation by SwiftX Meydan.

"Immediate" means within 24 hours of receipt, unless delayed by force majeure or regulatory requirements.

SwiftX Canada Partners means any partners, service providers and exchanges utilized by SwiftX Canada to effect local fiat currency transfers to Recipients.

SwiftX Meydan means SwiftX DLT FZE, an entity incorporated in Meydan FZE, UAE. SwiftX Meydan is not a party to this Agreement but is the owner of the Intellectual Property Rights in the Platform. SwiftX Canada is licensed by SwiftX Meydan to use and sublicense access to the Platform solely for the purpose of providing the Services to Client under this Agreement.

Term has the meaning given in 19.1 (being the Initial Term together with any subsequent Renewal Periods).

Transaction means the use by a Customer of the Business to effect cross-border funds transfers through the Services. A Transaction is considered complete once payment authorization is successfully obtained, the funds are successfully transferred to the Recipient, and a confirmation is received by Client from SwiftX Canada or the relevant financial institution that the funds have been received by the Recipient.

Web Portal means the web-based portal through which Client accesses the Dashboard.

1.2 Interpretation.

- (a) Clause, schedule and paragraph headings will not affect the interpretation of this Agreement.
- (b) A person includes an individual, corporate or unincorporated body (whether or not having a separate legal personality) and that person's legal and personal representatives, successors or permitted assigns.
- (c) A reference to a company will include any company, corporation or other body corporate, wherever and however incorporated or established.
- (d) Unless the context otherwise requires, words in the singular will include the plural and, in the plural, will include the singular.
- (e) Unless the context otherwise requires, a reference to one gender will include a reference to the other genders.
- (f) A reference to a statute or statutory provision is a reference to it as it is in force as at the Effective Date.
- (g) A reference to a statute or statutory provision will include all subordinate legislation made as at the Effective Date under that statute or statutory provision.
- (h) A reference to **writing** or **written** excludes fax but not email.
- (i) References to clauses and schedules are to the clauses and schedules of this Agreement; references to paragraphs are to paragraphs of the relevant schedule to this Agreement.

2. Services

2.1 In consideration of Client paying the Fees, SwiftX Canada will provide Client the Services in accordance with the terms of the Agreement.

2.2 From the Go Live Date, SwiftX Canada will provide to Client the following Services in support of the Business:

- (a) **Fiat and Digital-Asset payments (international money transfers and remittances) (Retail Payments only):**
 - (i) SwiftX Canada will act as a blockchain technology solutions provider to Client for Transactions; and

- (ii) SwiftX Canada will provide the relationship and the connectivity to Swift Partners to enable payment of local fiat currency to Recipients. Client will provide all necessary data and cooperation to enable SwiftX Canada's compliance with these obligations.
- (b) **Access to the Platform:** SwiftX Canada (through SwiftX Meydan) will provide Client with access to the Platform to facilitate Client's management of the Business and Transactions, overview of the SwiftX Canada Holdings, and status of all Transactions processed through the Service.
- (c) **API:** The API technology provided by SwiftX Canada will enable the Business to integrate the Platform's functionalities into Client's existing systems and applications. This includes:
 - (i) **Documentation:** outlining the API endpoints, request and response formats, authentication mechanisms, and other technical specifications. This documentation will be a reference guide for Client's developers tasked with integrating the Platform's API.
 - (ii) **Technical Support:** SwiftX Canada will provide technical support to assist Client's development team throughout the API integration process. This support will include troubleshooting assistance, code samples, best practices guidance, and regular updates on API enhancements or changes.
 - (iii) **Integration Capabilities:** Client may leverage the API to integrate core platform features, such as order processing, payment processing, and Customer data synchronization, into its own systems or third-party applications.

2.3 **Retail-only scope; no India Corporate Payouts**

- (a) The Parties acknowledge and agree that the Services are provided for Retail Payments only.
- (b) SwiftX Canada does not provide, support, process, or assume any responsibility for Corporate Payouts to India (India Corporate Payouts). India Corporate Payouts are out of scope of the Services unless SwiftX Canada expressly agrees otherwise in writing.
- (c) Client will not submit, and will ensure that its Customers do not submit, any India Corporate Payouts via the Services or the Platform. Client warrants that all Transactions are Retail Payments only. SwiftX Canada will implement automated screening in the Platform to detect potential India Corporate Payouts. If SwiftX Canada reasonably suspects that a Transaction constitutes an India Corporate Payout, SwiftX Canada may reject, block, or suspend processing of such Transaction and/or suspend the relevant access pending verification.

3. **Implementation**

- 3.1 As soon as practicable after the Effective Date, SwiftX Canada and Client will implement pilot versions of the Service elements for assessment purposes and subject to successful assessment by Client, integrate operational versions of the Service elements set out in clause 2. Client acknowledges that until the Service elements have been settled and agreed, Client cannot be granted access to the Services. SwiftX Canada agrees to work with Client in good faith and on the terms of this Agreement to ensure that the Services go live on or before the Go Live Date.
- 3.2 On or before the Go Live Date, SwiftX Canada will issue Client with Credentials enabling Client to access the Platform and Dashboard via the Web Portal.
- 3.3 Client will have no liability whatsoever, to SwiftX Canada or otherwise, in the event that the Go Live Date is delayed or otherwise prevented from occurring (whether temporarily or permanently) for any reason whatsoever, including, without limitation, the failure by SwiftX Canada to comply with its obligations under this Agreement or the delay, failure or refusal of third parties to provide their approvals, consents, services or support necessary for the delivery of the Services or the execution of Transactions by Client.

3.4 **Access.** The Parties will grant each other access in accordance with the following:

- (a) Where it is reasonably necessary to enable SwiftX Canada to deliver, provide or maintain the Services (including any associated equipment or infrastructure) in accordance with this Agreement, Client will allow or arrange for SwiftX Canada and SwiftX Canada's Representatives to have access to any systems, networks or other facilities of Client's or that are operated on Client's behalf with Client's consent. This access will be subject to Client's normal security and access procedures as notified to SwiftX Canada.
- (b) Where it is reasonably necessary to enable Client to meet its legal, commercial and regulatory obligations, SwiftX Canada will allow or arrange for Client and Client's Representatives (including without limitation, any staff involved in risk management, internal audit, external audit, and representatives) to have reasonable access to any information systems, networks or other physical facilities of SwiftX Canada or that are operated on SwiftX Canada's behalf by third-party service providers. This access will be subject to SwiftX Canada's normal security and access procedures as notified to Client.

4. **Fees, Invoicing, and Payment**

- 4.1 SwiftX Canada will provide the Client with an invoice for the Fees. Client must pay SwiftX Canada the Fees.
- 4.2 Client must pay all undisputed Fees invoiced under this clause 4 within five (5) Business Days after receipt of the relevant invoice. For the avoidance of doubt, this clause 4.2 does not apply to any prefunding, post-payout settlement, deferred settlement repayment, shortfall funding, or any other payment or settlement obligation that is expressly stated elsewhere in this Agreement or Schedule 2 to be due within a shorter period, which shall remain payable in accordance with those terms.
- 4.3 Fees are exclusive of any applicable tax and all payments must be made in full without any set off, deduction or withholding whatsoever (including bank charges).
- 4.4 If Client reasonably disputes any portion of the Fees on the invoice, Client will:
 - (a) pay the undisputed portion of the invoice; and
 - (b) submit written notice of the claim over the disputed portion, with sufficient detail of the amount and such information necessary to identify the Services relevant to the disputed amount.
- 4.5 All billing disputes must be submitted to SwiftX Canada within thirty (30) days from the date of the relevant invoice. Client waives the right to dispute any Fees not disputed within such thirty (30) day period.
- 4.6 Subject to a disputed invoice claim in accordance with clauses 4.3 and 4.5, and without prejudice to any other remedy available under the Agreement or Applicable Law, if any invoice (or part thereof) or other amount due and payable to SwiftX Canada is not paid by the due date:
 - (a) SwiftX Canada will have no obligation to perform the Services until full payment is received. SwiftX Canada will use commercially reasonable efforts to resume the Services as soon as practicable upon receipt in full of cleared funds; and
 - (b) Client will be liable to pay to SwiftX Canada a one-time administrative fee of USD 250 for each overdue undisputed invoice, together with any reasonable third-party collection costs, legal costs, bank charges, FX losses and other direct administrative costs actually incurred by SwiftX Canada as a result of the late payment.

5. **SwiftX Canada's Obligations**

5.1 When providing the Services, SwiftX Canada will:

- (a) provide the Services to Client in accordance with and subject to the terms of this Agreement, with reasonable care and skill and in accordance with the standards generally recognized in the industry for similar services;
- (b) perform maintenance and updates to the Platform monthly, or as otherwise necessary, to ensure its functionality, security, and compliance with applicable laws and industry standards. SwiftX Canada will provide Client with at least seven (7) days' notice of any planned maintenance or updates that may affect the availability of the Platform;
- (c) provide technical support to Client to resolve any issues related to the use of the Platform in accordance with clause 5.9. This technical support will be available during SwiftX Canada's normal business hours, and SwiftX Canada will respond to requests for technical support within two (2) Business Days;
- (d) establish accounts with suitably licensed, regulated and reputable third-party providers of digital asset exchange services ("**SwiftX Canada Partners**" or Authorized Delegates) solely for the receipt or exchange of USDC/USDT digital assets into local fiat currency and transfers to Recipients, without SwiftX Meydan engaging in any dealing in securities or virtual assets, custody, remittance, or direct account management. SwiftX Canada will conduct due diligence on all SwiftX Canada Partners to ensure they are licensed and compliant with applicable laws, and will audit them periodically;
- (e) implement and maintain security measures that are in accordance with the standards generally recognized in the industry for similar services to protect the Services and the data processed through it from unauthorized access, loss, or breach, including encryption, secure access controls, and security audits conducted on a quarterly basis;
- (f) provide Client with access to reporting and analytics tools within the Platform, via the Dashboard, which will be updated daily. These tools will include, but not be limited to, tools that allow Client to monitor Transaction activity, track payments, and generate financial reports. Client will have the right to request additional reports or analytics.

5.2 SwiftX Canada may, from time to time, implement:

- (a) changes to the Services in the event that it is required to do so in accordance with Applicable Laws or by the Regulatory Authorities. In such circumstances, SwiftX Canada will use reasonable endeavours to provide at least thirty (30) days' advance notice of any such changes, unless a shorter notice period is required by Applicable Laws or the Regulatory Authorities; and
- (b) upgrades to the Services provided that the changes concerned do not result in any adverse effect on the provision of the Services in accordance with this Agreement and also provided that the changes concerned do not require Client to make any material changes to its systems. SwiftX Canada will use reasonable endeavors to provide as much advance notice as possible of any such changes but is not bound to do so if to do so is not reasonably practicable.

5.3 SwiftX Canada may give Client reasonable instructions in relation to the Services or their operation, delivery or use. These instructions may include ones that are in the interests of security, quality or efficiency of the Services and any other matter relating to the Services. Client must and will use reasonable endeavors to ensure that its Representatives comply promptly with all such reasonable instructions. SwiftX Canada will not be liable for any breach of security or other failure relating to the Services where caused in whole or in part by the failure of Client or its Representatives to comply with reasonable instructions issued under the terms of this Agreement.

5.4 SwiftX Canada will maintain contingency plans, recovery plans and proper risk controls designed to ensure the continuity of its Services in case of a disaster or disruptive event. The ability of SwiftX Canada to support and maintain Services during disruptive incidents will be assessed yearly.

- 5.5 SwiftX Canada will, and will procure that each Representative and SwiftX Canada Partner and any other person associated with SwiftX Canada, or other persons who are performing Services in connection with this Agreement, will, at all times comply with all Applicable Laws, or industry codes which may apply to the provision of the Services, and will continue for the duration of this Agreement to have procedures and structures in place to prevent it or persons associated with it undertaking conduct that might amount to a breach of the same, including but not limited to all Applicable Laws and:
- (a) any applicable statutes, regulations and codes relating to anti-bribery, anti-corruption;
 - (b) any applicable anti-slavery and human trafficking laws, statutes, regulations and codes from time to time in force;
 - (c) any applicable sanctions imposed by a sanctions authority from time to time in force; and
 - (d) any applicable statutes, regulations and codes in relation to corporate criminal offences.

6. **Operation of the Platform**

- 6.1 If Client experiences problems with the Services, including, without limitation, basic troubleshooting, problems in login, problems in Credentials, and general issues about the features and functionality of the Platform, Web Portal and Dashboard, it may contact SwiftX Canada via support@swiftx.money. SwiftX Canada will investigate and notify Client whether the problem is related to the Services, determine the severity of the problem, and use reasonable efforts to remedy the problem, if possible. SwiftX Canada will notify Client upon the resolution of any request within three (3) Business Days.
- 6.2 SwiftX Canada's response and resolution commitments apply to tickets raised pursuant to clause 6.1 and opened within ninety (90) days of the underlying Transaction date or event. Tickets opened more than ninety (90) days after the underlying Transaction or event will be handled on a best-efforts basis without SLA response or resolution commitments.
- 6.3 SwiftX Canada may subcontract, delegate, or appoint Authorized Delegates to perform any part of the Services without Client's prior consent, provided that:
- (a) such Authorized Delegates are suitably qualified and, where relevant, compliant with Applicable Laws;
 - (b) SwiftX Canada provides notice to Client of any material delegation; and
 - (c) SwiftX Canada remains fully liable for the acts or omissions of such Authorized Delegates as if performed by SwiftX Canada itself.

Client may request reasonable anonymized information on Authorized Delegates' compliance, subject to confidentiality obligations.

7. **Permitted Users**

- 7.1 Client may permit its Agents and third-party service providers to access the Services on Client's behalf where such use is for the sole benefit of Client ("**Permitted User(s)**"). Client remains solely responsible for all actions and compliance by Permitted Users with the terms of the Agreement and for any related billing matters, technical support or disputes relating to such Permitted User.
- 7.2 Where Client is provided with specific login credentials, encryption key(s) or security certificates to access the Platform or the SwiftX Canada Account, Client must ensure that such credentials are only used by Permitted Users authorised to access the Platform or the SwiftX Canada Account. If such Permitted Users cease to act in an authorized capacity on behalf of Client for any reason (including if the Permitted User has left employment), Client must immediately remove the authorizations to access the Platform or the SwiftX Canada Account from such Permitted User, and if necessary, notify SwiftX Canada to do the same. Client agrees and acknowledges that all instructions received by SwiftX Canada through the Platform or the SwiftX Canada Account and

any specific login credentials are irrevocable and unconditional and can only be cancelled or amended if Lean has not acted on them.

- 7.3 SwiftX Canada may restrict access by a Permitted User to access the Services, Platform or the SwiftX Canada Account on Client's behalf if SwiftX Canada has reasonable grounds to suspect that the Permitted User is unauthorised or acting fraudulently. In such circumstances, SwiftX Canada will notify Client as soon as is reasonably practicable, unless it would be unlawful to do so, or SwiftX Canada cannot for security reasons. SwiftX Canada will reinstate access to the Services, Platform and/or the SwiftX Canada Account once the reason for refusing access no longer exists.
- 7.4 Client agrees and acknowledges that SwiftX Canada is not responsible for any errors or omissions made by Client or its Permitted Users or the duplication of any instruction by Client or its Permitted Users. Client remains responsible for any Fees incurred by its Permitted Users in connection with their use of the Services.

8. **Access**

8.1 The Parties agree:

- (a) the Services may be subject to usage limitations as specified in (if any) the 'Fair Use Policy' available on its website;
- (b) not to access or attempt to access any part(s) of the Services or Developer Application (as applicable) to which it has not been explicitly granted access;
- (c) not to scan or otherwise test (whether manually or in an automated fashion) the vulnerability of the other Party's infrastructure without explicit prior written consent;
- (d) to notify the other Party immediately if it becomes aware of any unauthorized access or any part thereof or any actual or potential breach of security in relation to the Services or Developer Application and provide reasonable assistance to the other party with regards to abating such access, use or breach as such Party may reasonably request;
- (e) where applicable, not share any specific login credentials, encryption key(s) or certificates that could be used to access the other party's infrastructure, Platform, SwiftX Canada Account or Services without such party's explicit prior written consent; and
- (f) that each Party will, during the Term, be permitted to include the other Party's logo for reasonable usage in any advertisement, marketing and/or promotional literature relating to the Services, as contemplated by the terms of the Agreement, subject always to such usage complying with the owner-Party's visual identity, along with any applicable branding rules and guidelines.

9. **Client's Obligations**

9.1 Client acknowledges and agrees that it will:

- (a) provide accurate, complete, and up-to-date information required for the setup and use of the Services. This includes business details, banking information, and any other data necessary for Transaction processing. Client will maintain adequate security and control of all Client Credentials and will immediately notify SwiftX Canada in the event it comes to Client's knowledge that Client Credentials have been compromised in any way;
- (b) comply with all applicable laws, regulations, and industry standards relevant to its business operations and the use of the Services. This includes obtaining all necessary licenses and permits required to conduct the Client Business legally, and performing all required AML/KYC checks on Customers. Furthermore, Client will not use the Services for any illegal or unauthorized activities, including but not limited to money laundering, financing of terrorism, or processing transactions for prohibited goods and services. Client will adhere to SwiftX Canada's policies and guidelines regarding acceptable use and, upon SwiftX Canada's reasonable request, provide AML/KYC data related to Customers or Transactions

to assist with regulatory compliance. Client warrants that its use of the Services does not require SwiftX Canada or SwiftX Meydan to hold any additional financial services licenses;

- (c) handle all Customer inquiries, disputes, and complaints related to its Transactions and the Business;
- (d) pay all Fees and charges associated with the use of the Services as specified in this Agreement; and
- (e) maintain accurate and complete records of all Transactions processed through the Services.

9.2 Client will be under no obligation to execute any Transactions through the Services during the Term.

10. **No Regulated Services**

10.1 SwiftX Canada will not, does not intend, and is not deemed to, act as a custodian, trustee, fiduciary or provider of regulated money services business in any jurisdiction, except to the extent permitted by its 'money services business' authorisation in Canada.

10.2 The Services are limited to technology infrastructure and operational support for facilitating payments and reporting. SwiftX Canada does not hold customer funds as a custodian, deals in securities, or provides lending.

10.3 SwiftX Canada may provide the technology aspects of the Services (including operating the Platform and facilitating Transaction instructions) through its affiliate and technology provider, which is presently SwiftX Meydan. In any event, SwiftX Canada will remain fully responsible for the performance of the Services in accordance with the terms of this Agreement. SwiftX Meydan's role is strictly limited to providing the technical platform and operational support for the Services, and does not involve conducting, facilitating, intermediating, or enabling regulated remittance activities, holding Client funds or assets, dealing in securities or virtual assets, lending, or any direct or indirect handling of financial flows or financial activities, except as expressly permitted in this Agreement (e.g., facilitating instructions for pre-funded digital asset balances via licensed partners). Client warrants that its use of the Services will not cause SwiftX Meydan to engage in any regulated activity.

10.4 SwiftX Canada may, at its discretion and upon reasonable notice to Client (not less than thirty (30) days unless required by Applicable Laws or for operational efficiency), modify the delivery structure of the Services, including by appointing or integrating Authorized Delegates or Affiliates, provided that such modifications do not materially adversely affect the quality, security, or overall compliance of the Services with Applicable Laws, and SwiftX Canada remains fully responsible for performance hereunder.

10.5 Client appoints SwiftX Canada as Client's authorised limited agent to arrange, enter into, and maintain any accounts or facilities that SwiftX Canada reasonably deems (acting reasonably) necessary and/or appropriate to deliver the Services to Client.

10.6 Digital assets or fiat funds facilitated by SwiftX Canada or its licensed Partners for Client's settlement purposes are assets temporarily handled solely for immediate Transaction execution, with beneficial ownership remaining with Client at all times. Neither SwiftX Canada nor SwiftX Meydan holds such assets in custody. None of the digital assets or fiat funds are the property of SwiftX Canada or SwiftX Meydan, are loaned to them, or are subject to their creditors' claims. Such assets will not be commingled with SwiftX Canada or SwiftX Meydan's corporate funds.

10.7 Except as set forth in this Agreement, SwiftX Canada will not sell, transfer, loan, hypothecate, or otherwise alienate any digital assets or fiat funds unless instructed by Client to do so via licensed Partners.

10.8 SwiftX Canada undertakes to procure that any of Client's digital assets or fiat funds facilitated through a licensed SwiftX Canada Partner will be handled solely for immediate settlement with Client as the ultimate beneficiary. Title remains with Client at all times and does not transfer to SwiftX Canada, SwiftX Meydan, or the SwiftX Canada Partner.

- 10.9 SwiftX Canada may instruct conversion into local currency a sum agreed by Client for immediate payouts to Recipients. Client may, at any time, require return of full USDT pre-funded unspent balance via licensed Partners. SwiftX Canada will ensure the full balance is returned promptly. Any FX gains or losses are the liability of SwiftX Canada.
- 10.10 Notwithstanding the foregoing, neither SwiftX Canada nor SwiftX Meydan will retain any funds received from Client beyond the time necessary for immediate Transaction execution, and in no event longer than one (1) business day except due to unforeseen operational delay or to complete a Transaction, in which case SwiftX Canada will notify Client and disburse or return the funds immediately thereafter. Client will have the right to audit compliance with this clause upon reasonable notice.
- 10.11 SwiftX Canada does not accept deposits, does not accept intermediate funds, and all client balances remain legally owned by the client until applied to a settlement. No aspect of this clause constitutes lending, custody, or dealing in securities by SwiftX Canada or SwiftX Meydan.
- 10.12 Notwithstanding anything in this Agreement, no aspect of the facilitation under this clause will occur through or involve SwiftX Meydan in any financial activities. All virtual asset-related activities will be conducted solely by SwiftX Canada or licensed partners, including via non-custodial wallets where Client retains control of keys.
- 10.13 Facilitation under this clause 8 refers to technical and operational support for instruction transmission and reporting, which may involve brief, incidental handling through Authorized Delegates for efficiency purposes, without implying any regulated financial service or extension beyond immediate execution timelines.

11. Deferred Settlement Facility

- 11.1 To facilitate Transactions, SwiftX Canada may, at its discretion, allow deferred settlement for payouts to Recipients, subject to Client's prompt repayment within one (1) Business Day. This is not a loan, credit extension, lending activity, or any financial activity but an operational facilitation. The non-interest facility fees for use of this deferred settlement will be as set out in Schedule 1.
- 11.2 Deferred settlement is available solely for operational continuity in exceptional circumstances (e.g., due to technical or market conditions) and limited to periods not exceeding 24 hours unless extended for unforeseen reasons, with immediate notice to Client. Any fees are administrative costs for processing, not interest or credit charges. This provision does not constitute any regulated financial service and may be administered through Authorized Delegates.

12. Transaction Failure and Refund / Recall Obligations

- 12.1 Transactions are not guaranteed. A Transaction will be deemed to have failed if the relevant local fiat currency is not successfully transferred to the designated Recipient's account within the stipulated time frame, or if the Transaction is reversed or declined by the payment processing entities.
- 12.2 Upon identification of a Transaction failure, Client must notify SwiftX Canada in writing as soon as reasonably practicable of the failed Transaction. The notification should include relevant details of the Transaction, including but not limited to Transaction ID, date, amount, and reason for failure, if known.
- 12.3 Upon receipt of Client's notification and subsequent verification of the Transaction failure, SwiftX Canada is obligated to refund the full value (calculated as at the Instruction Date) of the failed Transaction in USDT via licensed partners and record the refund against the facilitated balance of the SwiftX Canada Holdings within five (5) Business Days. The value refund will include any fees or charges initially deducted for the processing of the failed Transaction.
- 12.4 SwiftX Canada will not be held liable for refunding Transactions that fail due to a Force Majeure Event, issues caused by third-party financial institutions (other than Swift Partners), or incorrect payment information provided by Client.

- 12.5 Once a payout has been executed to the beneficiary bank, SwiftX Canada cannot unilaterally recall or reverse the funds. Any recall is subject to the applicable scheme rules, correspondent/partner processes, the beneficiary bank's consent, and the availability of funds at the beneficiary.
- 12.6 Upon Client written request made within ten (10) Business Days of settlement, SwiftX Canada will use best efforts to initiate and pursue a recall/retrieval request through the relevant rails and will provide reasonable status updates. Recalls are not guaranteed, and SwiftX Canada will have no liability for any unsuccessful recall or unrecovered amounts except to the extent caused by SwiftX Canada's fraud, wilful misconduct or gross negligence. Client is responsible for third-party/scheme charges and any FX differences or fees arising from a recall attempt.

13. **Representations and Warranties**

13.1 Each party represents and warrants that:

- (a) it has full power and authority and has obtained all necessary consents to enter into and perform its obligations under this Agreement (and any other agreement or arrangement to be entered into by it in connection with this Agreement);
- (b) holds all current regulatory or other qualifications, registrations, licences or approvals to provide or use the Services, as the case maybe;
- (c) the obligations expressed to be assumed by it are legal, valid, binding and enforceable against it in accordance with their terms; and
- (d) the execution, delivery or performance of this Agreement will not cause it to:
 - (i) breach the terms of any contract to which it is a party or breach any other obligation which it owes to any third party;
 - (ii) breach any law applicable to it; or
 - (iii) infringe the rights of any third party (including any Intellectual Property Rights).

13.2 SwiftX Canada represents and warrants that:

- (a) it has conducted a thorough risk and reputation assessment of each SwiftX Canada Partner prior to engaging them for the purposes of this Agreement;
- (b) each SwiftX Canada Partner is in good standing in the market and is not under any investigation or censure by any relevant authority;
- (c) each SwiftX Canada Partner and Authorized Delegate is properly licensed and regulated by all relevant authorities appropriate for the services they provide, to the extent required for their role in the Services;
- (d) any evolutions in Service delivery, including via Authorized Delegates, will maintain compliance with Applicable Laws without requiring additional licenses beyond its current MSB registration, unless notified otherwise; and
- (e) it will indemnify and hold harmless Client and each Customer and Recipient from and against all losses, claims, demands, actions, suits, damages, liabilities, proceedings or judgments, including costs, expenses and reasonable legal fees arising out of or relating to SwiftX Canada's use of any SwiftX Canada Partner, but only to the extent caused by SwiftX Canada's fraud, wilful misconduct, or gross negligence. Client will promptly notify SwiftX Canada of any such claim and allow SwiftX Canada to control the defense, provided Client may participate at its expense. Client will indemnify SwiftX Canada against any regulatory claims or fines arising from Client's use of the Services.

14. **Non-Circumvention**

- 14.1 Each Party agrees and undertakes that other than in concert with the other Party, or with the other Party's express prior written approval, for a period of two (2) years commencing on the date of this Agreement, it will not, directly or indirectly:
- (a) pursue any form of relationship, agreement, understanding, project, engagement, consultancy, work, acquisition, investment, or conduct any discussions, negotiations or have any other form of communication, or undertake anything similar to any of the foregoing with any person or entity introduced by the other Party in connection with the Proposed Business Relationship ("**Engagement**");
 - (b) induce, solicit, procure or otherwise encourage any third party to pursue an Engagement; or
 - (c) seek to encourage or respond to any approach from any third party to pursue an Engagement.
- 14.2 Each Party will procure that its officers, employees, consultants and other representatives and each member of its Group and their respective officers, employees, consultants and other representatives, comply with 7.1 as if they were that Party.

15. **Data Protection**

15.1 **Definitions.**

- (a) **Data Privacy Standards** means all relevant and applicable data privacy standards.
- (b) **Personal Information** means the following:
- (c) Personally, identifiable information ("**PII**") of an Individual, which includes:
 - (i) First name and last name or first initial and last name in combination with any one or more of the data elements listed below that relate to such Individual;
 - (ii) National ID number;
 - (iii) Financial account number, or credit or debit card number, with or without any required security code, access code, personal identification number or password, that would permit access to an Individual's financial account;
 - (iv) Passport number;
 - (v) Username or email address coupled with a password or security question and answer that would permit access to an online account; and/or
 - (vi) The personal information or data shared by Client should be used in accordance with the requirement it has been collected for.
- (d) **Subcontractor** means a supplier, agent and/or another contractor of SwiftX Canada.

- 15.2 **Compliance with Data Privacy Standards.** To the extent SwiftX Canada maintains, acquires, discloses, uses, or has access to any Personal Information, SwiftX Canada will comply with all Data Privacy Standards. SwiftX Canada will notify Client in writing within 24 hours if SwiftX Canada is no longer in compliance with Data Privacy Standards or any Data Privacy Breach.

- 15.3 **Privacy Breach.** If SwiftX Canada, or its Subcontractor, suspects, discovers or is notified of any data breach or leakage and/or privacy issue relating to Personal Information, SwiftX Canada will promptly notify Client of such incident or potential breach. SwiftX Canada will, upon Client's request, investigate such incident or potential breach, inform Client of the results of any such investigation, and assist Client in maintaining the confidentiality of such information. In addition to the foregoing, SwiftX Canada will provide Client with any assistance necessary to comply with any regulatory laws requiring the provision of notice of any privacy breach with respect to any Personal Information to the affected or impacted individuals and/or organizations, in addition to any notification to applicable regulatory agencies.

- 15.4 **Transaction Data.** Subject to the Data Privacy Standards, including Canadian PIPEDA and UAE Federal Decree-Law No. 45/2021 (PDPL), aggregated, anonymized, intermediate, derived, and distilled data resulting from the processing and analysis of Transactions (including Customer Personal Information and associated data) and Client's use of the Services ("**Transaction Data**") that is stored as part of the Service, is the property of Client. SwiftX Canada will have the right to store, process, and analyse Transaction Data as may be reasonably required by the functionality of the Service or to improve the Service, using data minimization principles and implementing appropriate security measures in compliance with Applicable Laws, including safeguards for cross-border data transfers such as standard contractual clauses where required. All data transfers will incorporate standard contractual clauses or equivalent safeguards as deemed appropriate under Applicable Laws. SwiftX Canada may delegate data processing to Authorized Delegates, provided compliance is maintained.

16. **Intellectual Property Rights**

- 16.1 Nothing in this Agreement will be construed as a transfer or assignment by one party to the other of any Intellectual Property Rights owned, possessed, or otherwise controlled by or licensed to such party. This includes any Intellectual Property Rights existing before the date of this Agreement or created, developed or otherwise obtained by or on behalf of a party other than in connection with this Agreement. Each party retains all rights, title, and interest in its respective Intellectual Property Rights, whether those rights are recognised or perfected under the applicable laws of the jurisdiction in which this Agreement is enforced or any other jurisdiction.
- 16.2 All Intellectual Property Rights associated with or related to SwiftX Canada, including but not limited to those in the Dashboard, Web Portal, and the Platform, including any improvements thereto based on Client feedback or otherwise, will remain the exclusive property of SwiftX Canada. These rights are retained by SwiftX Canada regardless of whether they are specifically recognised or perfected under the laws of the jurisdiction where the Platform, Dashboard and the Web Portal are utilised. Client acknowledges and agrees that it will not engage in any conduct or actions that could jeopardise, infringe, or otherwise harm the proprietary rights of SwiftX Canada. This includes, but is not limited to, copying, distributing, modifying, reverse engineering, decompiling, or disassembling any part of the Platform, Dashboard or Web Portal, or creating any derivative works based on them. Client further agrees to take all necessary steps to protect SwiftX Canada's Intellectual Property Rights and to notify SwiftX Canada promptly if it becomes aware of any potential or actual infringement of these rights. Without limitation to the foregoing, the Intellectual Property Rights in all improvements and deliverables created or developed or otherwise obtained by or on behalf of SwiftX Canada in connection with this Agreement will be the property of, and will immediately upon creation vest in, SwiftX Canada. However, SwiftX Canada grants to Client a non-exclusive, non-sublicensable, non-transferable, non-assignable, royalty-free licence to use such Intellectual Property Rights solely for the purpose of using the Services during the Term. Such licence will be non-revocable during the Term except where:
- (a) this Agreement is suspended or terminated in accordance with its terms; or
 - (b) Client commits a material breach of this Agreement and, if such breach is capable of remedy, fails to remedy it within thirty (30) days after receiving written notice requiring it to do so.
- 16.3 All Intellectual Property Rights associated with or related to Client will continue to be owned by Client.

17. **Confidentiality**

- 17.1 **Confidential Information** means all confidential information (however recorded or preserved) disclosed by a party or its Representatives to the other party and that party's Representatives whether before or after the Effective Date in connection with the Services, including:
- (a) the existence and terms of this Agreement;

- (b) any information that would be regarded as confidential by a reasonable business person relating to:
 - (i) the business, assets, affairs, customers, clients, suppliers, or plans, intentions, or market opportunities of the disclosing party (or of any member of the group of companies to which the disclosing party belongs); and
 - (ii) the operations, processes, product information, know-how, designs, trade secrets or software of the disclosing party (or of any member of the group of companies to which the disclosing party belongs);
 - (c) any information developed by the parties in the course of carrying out this Agreement and the parties agree that:
 - (i) details of the Services, and the results of any performance tests of the Services, will constitute SwiftX Canada Confidential Information; and
 - (ii) Transaction Data will constitute Client Confidential Information.
- 17.2 The provisions of this clause will not apply to any Confidential Information that:
- (a) is or becomes generally available to the public (other than as a result of its disclosure by the receiving party or its Representatives in breach of this clause);
 - (b) was available to the receiving party on a non-confidential basis before disclosure by the disclosing party;
 - (c) was, is or becomes available to the receiving party on a non-confidential basis from a person who, to the receiving party's knowledge, is not bound by a confidentiality agreement with the disclosing party or otherwise prohibited from disclosing the information to the receiving party;
 - (d) the parties agree in writing is not confidential or may be disclosed; or
 - (e) is developed by or for the receiving party independently of the information disclosed by the disclosing party.
- 17.3 Each party will keep the other party's Confidential Information secret and confidential and will not:
- (a) use such Confidential Information except for the purpose of exercising or performing its rights and obligations under or in connection with this Agreement ("**Permitted Purpose**"); or
 - (b) disclose such Confidential Information in whole or in part to any third party, except as expressly permitted by this clause 14.
- 17.4 A party may disclose the other party's Confidential Information to those of its Representatives who need to know such Confidential Information for the Permitted Purpose, provided that:
- (a) it informs such Representatives of the confidential nature of the Confidential Information before disclosure; and
 - (b) at all times, it is responsible for such Representatives' compliance with the confidentiality obligations set out in this clause.
- 17.5 A party may disclose Confidential Information to the extent such Confidential Information is required to be disclosed by law, by any governmental or other Regulatory Authority (including, without limitation, any relevant securities exchanges) or by a court or other authority of competent jurisdiction provided that, to the extent it is legally permitted to do so, it gives the other party as much notice of such disclosure as possible and, where notice of disclosure is not prohibited and is given in accordance with this clause 11.5, it takes into account the reasonable requests of the other party in relation to the content of such disclosure.
- 17.6 Each party reserves all rights in its Confidential Information. No rights or obligations in respect of a party's Confidential Information other than those expressly stated in this Agreement are granted to the other party, or to be implied from this Agreement.

- 17.7 No party will make, or permit any person to make, any public announcement concerning this Agreement without the prior consent of the other parties (such consent not to be unreasonably withheld or delayed), except as required by law, any governmental or Regulatory Authority (including, without limitation, any relevant securities exchange), any court or other authority of competent jurisdiction.
- 17.8 Except as expressly stated in this Agreement, no party makes any express or implied warranty or representation concerning its Confidential Information.
- 17.9 The above provisions of this clause 11 will continue to apply after termination or expiry of this Agreement.

18. **Services 'As Is' Disclaimer**

- 18.1 Client acknowledges and agrees that certain API endpoints apply machine learning to provide enrichment services, such as insights and trends, categorisation, reconciliation and verification services.
- 18.2 The Services and Platform are provided on an "as is" basis and to the fullest extent permitted by Applicable Law, SwiftX Canada does not make any warranty of any kind, whether express, implied, statutory or otherwise, including:
 - (a) fitness for a particular purpose; or
 - (b) will be available, accessible, uninterrupted, timely, secure, accurate, complete, and free of any errors or defects.
- 18.3 Save as expressly set out in this Agreement, Client agrees and acknowledges that SwiftX Canada is not responsible for any delays, reliance, delivery failures, loss, damages, increased costs or expenses, errors or omissions, loss of opportunity, profits, revenue or anticipated savings.
- 18.4 Save as expressly set out in this Agreement, SwiftX Canada does not give any representation or warranty (express or implied) in respect of the subject matter of this Agreement and all warranties and representations which may be implied by statute or otherwise are hereby excluded to the maximum extent permitted by Applicable Law.
- 18.5 In accordance with Good Industry Practice, SwiftX Canada will provide a consistent level of quality and timeliness in the provision of the Services, transaction processing, and systems availability, in line with the terms of this Agreement.
- 18.6 Client acknowledges that the Services and Platform may be subject to downtime due to planned or emergency maintenance, updates or modifications from time to time. Where possible, Client will provide prior reasonable notice to Client of any planned downtime and will conduct pre-scheduled maintenance outside of peak hours to minimize disruption and availability of the Services.
- 18.7 SwiftX Canada will implement reasonable security measures to prevent unauthorised access to Client Data and will be liable for any loss arising from unauthorized access due to its gross negligence or wilful misconduct in failing to implement such measures.

19. **Limitation of liability**

- 19.1 To the maximum extent permitted by Applicable Law, the parties agree that the liability cap for the benefit of the parties is the General Limitation of Liability Cap.
- 19.2 The limitation of liability in clause 17.1 will not apply to any liabilities, claims, losses, costs, and damages in connection with:
 - (a) violation of applicable data protection laws;
 - (b) violation of a party's Intellectual Property Rights by the other party;
 - (c) breach of confidentiality obligations;
 - (d) fraud, gross negligence, wilful or reckless misconduct of a party; or

- (e) death or personal injury caused by either party.
- 19.3 Nothing in the Agreement will limit or exclude either party's liability to the extent that such liability may not otherwise be limited or excluded by Applicable Law.
- 19.4 Notwithstanding any other provision of this Agreement, the parties will not have any liability (including by way of indemnity) arising under the Agreement, whether in contract, tort (including negligence), misrepresentation, breach of statutory duty (including strict liability) or losses otherwise arising out of, or in relation to, directly or indirectly, for any:
 - (a) increased costs or expenses;
 - (b) loss of opportunity, profits, revenue or anticipated savings;
 - (c) loss of business;
 - (d) loss of goodwill or reputation; or
 - (e) special, indirect or consequential loss or damage, of any nature whatsoever suffered by that other party (including legal and other professional fees, expenses and disbursements).

20. **Indemnity**

- 20.1 Each party ("**Indemnifying Party**") will indemnify and hold the other party ("**Indemnified Party**") harmless from and against all direct losses, claims, demands, actions, suits, damages, liabilities, proceedings or judgments, including costs, expenses and reasonable legal fees assessed against the Indemnified Party arising out of or related to the Indemnifying Party's:
 - (a) material breach of its settlement obligations under this Agreement or Applicable Laws;
 - (b) infringement of any third party intellectual property rights;
 - (c) fraud or other criminal offence; or
 - (d) wilful misconduct or gross negligence committed by the Indemnifying Party or any of its Representatives and, in the case of SwiftX Canada, each SwiftX Canada Partner, in connection with the Services.

Indemnity claims are subject to an aggregate cap of US\$1,000,000, require prompt notice from the Indemnified Party, and each party will mitigate losses. No liability for regulatory fines unless due to the Indemnifying Party's gross negligence, fraud, and/or willful misconduct.

- 20.2 If a claim being made or proceeding brought against an Indemnified Party in respect of any matter for which the Indemnifying Party has agreed to indemnify the Indemnified Party, the Indemnifying Party will be promptly notified thereof in writing and may, at its own expense and discretion, conduct all negotiations for the settlement of the same and any litigation that may arise therefrom. The Indemnified Party will cooperate fully with the Indemnifying Party in the reasonable defence or resolution of such claim, and will not, unless and until the Indemnifying Party has failed within a reasonable time to take over the conduct of the negotiations or litigation, make any admission or settlement that might be prejudicial to the Indemnifying Party.
- 20.3 SwiftX Canada expressly disclaims any liability or loss arising from or related to:
 - (a) Client's failure to properly activate, integrate, or secure its account using the Services;
 - (b) fraudulent transactions conducted through Client's Wallet by a Customer;
 - (c) disruption of Services, systems, servers, or websites by any means, including, but not limited to, attacks, software viruses, trojan horses, worms, time bombs, or any other harmful technology introduced by a Customer or by Client as a result of Client's use of the Services;

- (d) acts, omissions, errors, misrepresentations, breaches of warranties, negligence, or misconduct by any third party, including third-party service providers or partners (excluding any SwiftX Canada partners);
 - (e) unauthorized access to data, including but not limited to Customer data such as credit card numbers and other personally identifiable information, Transaction Data, or personal information belonging to Client or any third party; or
 - (f) any India Corporate Payouts (including any attempt by Client or any Customer to initiate or process an India Corporate Payout using the Services), including any delay, rejection, failure, compliance action, investigation, freeze, return, penalty, or loss arising from or in connection with such India Corporate Payouts. For the avoidance of doubt, SwiftX Canada accepts no liability whatsoever for India Corporate Payouts. Client warrants that all Transactions comply with Applicable Laws, including restrictions on India Corporate Payouts.
- 20.4 SwiftX Canada will not be held liable for any issues related to the legitimacy of transactions conducted through the Services, or any losses or fraud that may occur as a result of using the Services.
- 20.5 SwiftX Canada is not liable for any losses, damages, or costs that Client or others may suffer arising from Client's failure to use or implement anti-fraud or data security measures. Furthermore, SwiftX Canada is not liable for any losses, damages, or costs that Client or others may suffer arising out of or relating to:
- (a) Client's access to, or use of, the Services in a manner inconsistent with this Agreement;
 - (b) unauthorized access to servers or infrastructure by any Customer or Representative;
 - (c) service interruptions or stoppages caused by Force Majeure Event, issues caused by third-party financial institutions (other than Swift Partners), or actions of Client or Customers;
 - (d) bugs, viruses, or other harmful code that may be transmitted to or through the Service by Client, its Customers or Representatives; or
 - (e) defamatory, offensive, fraudulent, or illegal conduct by Client, its Customers or Representatives.
- 20.6 Client acknowledges and agrees that it will be solely liable for:
- (a) any amounts arising out of or in connection with the dispute of a Transaction by a Customer or issuer except where caused by SwiftX Canada's breach of the terms of this Agreement;
 - (b) any amounts arising out of or in connection with any dispute by a Customer due to unsuccessful or delayed delivery of products or unsuccessful or delayed settlement of the Transaction except where caused by SwiftX Canada's failure to comply with the terms of this Agreement;
 - (c) all claims, fees, costs, and damages arising out of or in connection with Client's loss, misplacement, or destruction of Transaction supporting documents and its inability to produce such documents at SwiftX Canada's reasonable request;
 - (d) claims, costs, and damages arising out of the insufficiency or inaccuracy of information and documents submitted to SwiftX Canada in the event of a chargeback as described in this Agreement;
 - (e) claims, costs, and damages arising out of or in connection with a Transaction deemed to be fraudulent or non-compliant with Applicable Laws; and
 - (f) claims, costs, and damages arising out of or in connection with a disputed Transaction by the Customer and/or issuer due to fraud and/or data compromise that may have taken place through Client's customer interface, or the websites or networks of any of the Customers.

Nothing contained herein will exclude or limit either party's liability for fraud, negligence, wilful misconduct or wilful default. SwiftX Canada's liability for any regulatory interpretations or fines

arising from the structure or delivery of Services will be limited to instances of its own wilful misconduct, excluding any grey areas in Applicable Laws interpretations.

21. **Term and termination**

21.1 **Term.** This Agreement commences on the Effective Date and will continue for the Initial Term and, thereafter, this Agreement will be automatically renewed for successive periods of two (2) years (each a “**Renewal Period**”), unless otherwise terminated in accordance with the provisions of this Agreement. The Initial Term together with any subsequent Renewal Periods, will constitute the “**Term**”.

21.2 **Termination for convenience.** Either party may terminate this Agreement for convenience by giving to the other party not less than sixty (60) calendar days’ advance written notice before the end of the Initial Term or any subsequent Renewal Periods.

21.3 **Termination for cause.** Without affecting any other right or remedy available to it, either party may terminate this Agreement with immediate effect by giving written notice to the other party if:

- (a) the other party fails to pay any amount due under this Agreement on the due date for payment and remains in default not less than thirty (30) calendar days after being notified in writing to make such payment;
- (b) the other party commits a material breach of any other term of this Agreement and (if such breach is remediable) fails to remedy that breach within a period of thirty (30) calendar days after being notified in writing to do so;
- (c) the other party suspends, or threatens to suspend, payment of its debts or is unable to pay its debts as they fall due or admits inability to pay its debts or is deemed unable to pay its debts;
- (d) the other party suspends or ceases, or threatens to suspend or cease, carrying on all or a substantial part of its business; or
- (e) the other party's financial position deteriorates so far as to reasonably justify the opinion that its ability to give effect to the terms of this Agreement is in jeopardy.

21.4 **Effect of termination.** On termination of this Agreement for any reason:

- (a) all licenses granted under this Agreement will immediately terminate and Client will immediately cease all use of the Services;
- (b) any rights, remedies, obligations or liabilities of the parties that have accrued up to the date of termination, including the right to claim damages in respect of any breach of the agreement which existed at or before the date of termination will not be affected or prejudiced; and
- (c) each party will return, upon the other party’s request, any and all property of the other party (including, without limitation, any Confidential Information and other property of the other party).

21.5 The obligations in clauses 9, 10, 11, 13, and 18 will continue and notwithstanding termination of this Agreement for any reason.

22. **Force majeure**

22.1 An Affected Party will not be in breach of this Agreement nor be liable for failure or delay in performing its obligations under this Agreement if it notifies the other party promptly of the events and circumstances constituting the Force Majeure Event, the likely duration of such events or circumstances and their consequences on its obligations.

22.2 After delivery of a notice in accordance with this clause 18, the Affected Party will keep the other party informed of material developments relating to the Force Majeure Event.

- 22.3 The Affected Party will use reasonable endeavours to continue to perform its obligations under this Agreement and to minimize the adverse effects of the Force Majeure Event.
- 22.4 The Affected Party will notify the other party of the steps it proposes to take to minimize the effects of any Force Majeure Event, including any reasonable alternative means for performance of its obligations under this Agreement. The other party will use reasonable endeavours to co-operate in taking such steps, if and to the extent it is not prejudiced by doing so.

23. **No Third Party Rights**

- 23.1 Nothing in this Agreement is intended to, or will be deemed to, establish any partnership or joint venture between the Parties, constitute any Party the agent of another Party, or authorize any Party to make or enter into any commitments for or on behalf of any other Party.
- 23.2 This Agreement is made for the benefit of the Parties and (where applicable) their successors and permitted assigns, and is not intended to benefit or be enforceable by any third party, including but not limited to any SwiftX Canada Partners, Authorized Delegates, Representatives, Affiliates, subcontractors, or other service providers assisting SwiftX Canada in the provision of the Services.
- 23.3 The rights of the Parties to terminate, rescind, or agree to any amendment, waiver, variation, or settlement under or relating to this Agreement are not subject to the consent of any third party.
- 23.4 Notwithstanding any other provision of this Agreement, no term of this Agreement is enforceable by a person who is not a party to it, and the Parties may vary or terminate this Agreement without the consent of any such third party.

24. **Notices**

- 24.1 Any notice, request, consent, demand, or other communication required or permitted under this Agreement (collectively, “**Notices**”) must be in writing and will be deemed to have been duly given:
- (a) when delivered personally, by hand, or by courier service;
 - (b) when sent by electronic mail (email), provided that a confirmation copy is also sent by one of the other methods specified in this clause;
 - (c) when sent by registered or certified mail (return receipt requested), postage prepaid; or
 - (d) when sent by overnight delivery service, in each case addressed as follows:

SwiftX Canada:

- Attention: Mirnas Brescic
- Address: Meydan Grandstand, 6th floor, Meydan Road, Nad Al Sheba, Dubai, United Arab Emirates
- Email Address: mirnas@saturnx.money

Client:

- Attention: TBC
- Address: TBC
- Email Address: TBC

- 24.2 Notices will be deemed effective upon receipt or refusal of receipt, if delivered personally, by hand, or by courier service. Notices sent by electronic mail will be deemed effective upon the sender's receipt of confirmation that the email was successfully sent, provided that the confirmation copy is also sent by one of the other methods specified herein. Notices sent by registered or certified mail, return receipt requested, or by overnight delivery service, will be deemed effective on the date of delivery as indicated on the return receipt or delivery service's records.

24.3 Each party agrees to promptly notify the other party in writing of any changes to its contact information specified in this clause. A party's failure or delay in providing or receiving any Notice under this Agreement will not be construed as a waiver of such party's rights and obligations under this Agreement

25. **General**

25.1 Client must not assign, transfer, novate, or subcontract any of its rights and/or obligations (either in whole or part) under the Agreement, in whole or in part, without the prior written consent of SwiftX Canada, which will not be unreasonably withheld. SwiftX Canada may at any time assign, novate and/or transfer any of its rights and/or obligations or its legal relationship with Client, (either in whole or in part) under the Agreement at its sole and absolute discretion. To the extent permissible by Applicable Law, Client agrees in advance to such assignment, novation or transfer. SwiftX Canada is expressly permitted under clauses 2 and 5 with respect to Authorized Delegates and Affiliates.

25.2 If any provision or part-provision of this Agreement is or becomes invalid, illegal or unenforceable, it will be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision will be deemed deleted. Any modification to or deletion of a provision or part-provision under this clause will not affect the validity and enforceability of the rest of this Agreement.

25.3 A waiver of any right or remedy under this Agreement or by law is only effective if given in writing and will not be deemed a waiver of any subsequent breach or default. A failure or delay by a party to exercise any right or remedy provided under this Agreement or by law will not constitute a waiver of that or any other right or remedy, nor will it prevent or restrict any further exercise of that or any other right or remedy. No single or partial exercise of any right or remedy provided under this Agreement or by law will prevent or restrict the further exercise of that or any other right or remedy.

25.4 Nothing in this Agreement is intended to, or will be deemed to, establish any partnership or joint venture between the parties, constitute either party the agent of the other, or authorise either party to make or enter into any commitments for or on behalf of the other party.

25.5 This Agreement constitutes the entire agreement between the parties and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter including SwiftX Canada's terms and conditions/own agreement.

25.6 This Agreement does not give rise to any rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this Agreement.

25.7 Except as set out in this Agreement, no variation of this Agreement, including the introduction of any additional terms and conditions, will be effective unless it is agreed in writing and signed by the parties or their authorised representatives.

25.8 If any Regulatory Authority inquires, investigates, issues any request, direction or notice, or takes any action regarding the Services, the Platform, any Transaction or Client's use of the Services, and such matter materially adversely affects, or SwiftX Canada reasonably believes is likely to materially adversely affect, SwiftX Canada's ability to provide the Services lawfully, safely or in accordance with Applicable Laws, sanctions requirements or partner requirements, SwiftX Canada may suspend or terminate the Services or this Agreement in whole or in part upon notice to Client and without liability. SwiftX Canada will provide Client with as much prior notice as is reasonably practicable in the circumstances, including where reasonably practicable not less than forty-eight (48) hours' notice, except where shorter notice or immediate action is required by Applicable Law, a Regulatory Authority, a partner requirement, fraud or sanctions concerns, security concerns, or other urgent risk considerations.

26. **Governing Law and Dispute Resolution**

- 26.1 This Agreement and the rights of the parties hereunder will be governed by the laws of England and Wales.
- 26.2 Any dispute arising out of the formation, performance, interpretation, nullification, termination or validation of this Agreement in any manner whatsoever ("**Dispute**") will be referred to the Dubai International Arbitration Centre and finally resolved by arbitration under the DIAC Arbitration Rules in force on the date of the submission of the request for arbitration ("**Rules**"), which Rules are deemed to be incorporated by reference into this clause. The number of arbitrators to be appointed in accordance with the Rules will be 3. The legal seat of the arbitration will be the DIFC and the language of the arbitration will be English.
- 26.3 Notwithstanding the foregoing, disputes involving regulatory interpretations or compliance with Applicable Laws may, at SwiftX Canada's option, be resolved in the courts of the relevant jurisdiction (e.g., Canada or UAE) to facilitate specialized expertise.

This Agreement has been entered into on the date stated at the beginning of it.

SIGNATURES:

Signed by **Mirnas Brescic** for and on behalf
of **SwiftX DLT Pay Ltd**

Signed by:

.....52A6F5E36C1Q441.....
Director Signature

Signed by Abdallah Abu Sheikh for and on
behalf of Client

Signed by:

.....0C8EC9AF413D4D4.....
Signature

Schedule 1 - Fees

SwiftX Canada will charge the following fees (International Money Transfers, remittances and business payments) for Pakistan to start. Additional countries will be negotiated on a best effort basis, and formally confirmed prior to starting flows. Pakistan pricing is dependent on its regulatory environment and subject to change. Any changes will be communicated to the MAL team in advance

- **Platform Fees:** Platform access is free of charge.
- **Under \$200 per remittance:** 0.20% FX spread
- **Above \$200 per remittance:** 0.20% FX spread only
- **SBP rebate:** 18 SAR to Mal on all transactions above \$200
- **Bank validation:** Free
- **Cost for T+1 funding:** 10 bps daily / overnight
- **API commitment:** Uptime of 99.95%, based on historical performance. Any changes in expectations or extenuating circumstances to be communicated in real time and managed accordingly with client and SwiftX
- **PKR disbursement:** Real time - 98% in 15 minutes or less
- **Monthly Minimum Volume Commitment (MMVC):** Not applied for the first 6 months, to be confirmed at 6 month mark. This is the minimum monthly volume that the Client agrees to process through SwiftX Canada.
- **Monthly Minimum Commitment Fee (MMCF):** For any month the MMVC has not been achieved (and not caused or contributed by SwiftX Canada), Client must pay SwiftX Canada the shortfall fee of 1% on each AED below the MMVC
- **FX Price:** SwiftX Canada will at all times (except in case of technical issues or market disruptions) stream and provide all FX prices. In some situations, SwiftX Canada may be able to offer additional rebates on the volume processed. These are transparent and are shared with every quote and are available for review in the Platform.
- **Deferred Settlement Facility:** Any deferred settlement balance will be charged a facility administration fee of 0.10% (10 basis points) for each commenced 24-hour period for which that amount remains outstanding. The aggregate administration fee for any single deferred settlement event will not exceed 0.30% (30 basis points) of the relevant outstanding amount. For the avoidance of doubt, this administration fee is not interest and does not limit SwiftX Canada's rights to suspend the Services, refuse any further deferred settlement, or recover any separate direct losses, third-party costs, bank charges or FX costs arising from Client's failure to settle on time.

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- **Cost of Stablecoin sourcing:** Client will cover the cost of stablecoin sourcing, and SwiftX Canada will ensure that Client will use its network of partners and relationships to have access to competitive USDT/USDC acquiring price.
- **Share of Client's international money transfer profits:** Client will not share any profits from its own remittance / cross-border business (existing markup is not shared).
- **Settlement Delay Fees:** In the case of post-payout settlement, Client will use its best endeavours to settle within one (1) Business Days of payout.

Schedule 2 - Settlement and Payout Terms

This Schedule sets out the settlement and payout terms under which SwiftX Canada receives digital assets and/or funds solely for the purpose of executing or settling payout Transactions on behalf of Client, **without acting as a custodian**.

1. Settlement Options

- 1.1 Client will have the option to elect one of the following settlement methods, as notified to SwiftX Canada in writing from time to time:
- (a) **Immediate Pre-Funding:** Client will remit funds in USD/USDT/USDC in advance to SwiftX Canada's designated licensed partner for the sole purpose of executing payout Transactions to Recipients. SwiftX will process the Payout Transactions promptly upon receipt of such funds by the partner, without any involvement of SwiftX Meydan in financial flows.
 - (b) **Post-Payout Settlement:** SwiftX Canada may, at its sole discretion and subject to operational capacity, process payout Transactions in advance of receiving funds from Client. In such a case, Client will settle the corresponding payout value in USDT/USDC to SwiftX Canada within one (1) Business Day from the date the payout is executed. Any failure to settle on time will attract charges as per Schedule 1.

2. No Custody

- 2.1 Client acknowledges and understands that:
- (a) SwiftX Canada (and SwiftX Meydan) do not hold a license to accept deposits, custody assets, and/or store value / electronic money; and
 - (b) SwiftX Canada does not by this Agreement intend to imply that SwiftX Canada (or SwiftX Meydan) hold a license to accept deposits, custody assets, and/or store value / electronic money.
- 2.2 All funds received by SwiftX Canada from Client (whether pre-funded or settled post-payout) are facilitated solely for the limited purpose of immediate execution of payout Transactions to designated Recipients or settling already processed Transactions.
- 2.3 SwiftX Canada will ensure that such funds:
- (a) are not co-mingled with corporate funds;
 - (b) are disbursed or returned to Client immediately upon receipt, unless extended solely for operational reasons and with prior notice;
 - (c) are not held, retained, invested, or treated as assets under management by SwiftX Canada or any of its partners.

Neither SwiftX Canada nor SwiftX Meydan engages in dealing, advising, or managing securities or virtual assets. Settlement processes may involve Authorized Delegates for enhanced efficiency, without altering the non-custodial nature or implying any regulated activity.

3. Errors

- 3.1 In the event of an error, whether via the Services or Platform, in a purchase order confirmation, in processing your purchase, in funding your account, in transferring fiat currency or digital assets to a financial account, or any other transaction, we will provide notice of the error via the Platform or, where the Platform experiences any loss in functionality, through the notice provisions set out in clause 18. Where necessary, we will assist in remedying an error, including by revising the transaction (including charging the correct price), cancelling the transaction, or taking any other action to resolve the error (including exchange fiat currency or digital assets in your account for

alternative types of fiat currency or digital assets and deducting any applicable Fees and taxes to correct the error).

4. Insufficient Assets

- 4.1 If you have an insufficient amount of fiat balance or digital assets in your account to complete a Transaction, the Transaction will not complete on the Platform until further funds are added.

Schedule 3 – Role of SwiftX Canada (Technology Provider)

SwiftX Meydan is an Affiliate of SwiftX Canada and serves as the technology provider for the Platform and related Services. The following clarifications apply to SwiftX Meydan's role:

- **Platform Operations:** SwiftX Meydan is responsible for operating and maintaining the Platform infrastructure (including the API, Web Portal, and Dashboard).
- **No Regulated Money Services:** SwiftX Meydan does not engage in any regulated remittance or money transfer activities. All registered payment services (including the exchange of digital assets to fiat currency and the transfer of funds to Recipients) are provided by SwiftX Canada (the MSB-registered entity) and/or SwiftX Canada Partners under SwiftX Canada's oversight.
- **No Custody of Client Funds:** SwiftX Meydan does not take custody of or control any funds (fiat or digital assets) of Client or its Customers. Any prefunding of digital assets by Client for use in the Services is held with a duly licensed SwiftX Canada Partner (as set out in this Agreement) with Client as the beneficial owner. SwiftX Meydan's involvement in such prefunding is strictly limited to providing the technical means to monitor and instruct transactions involving those assets, and SwiftX Canada (or the relevant SwiftX Canada Partner) remains responsible for any handling of funds.
- **SwiftX Canada Responsibility:** SwiftX Canada remains fully responsible to the Client for the performance of all obligations under this Agreement. The use of SwiftX Meydan as a service provider does not limit or exclude SwiftX Canada's liabilities or responsibilities under this Agreement. SwiftX Canada will ensure that SwiftX Meydan complies with all relevant terms of this Agreement (including confidentiality, data protection, and security obligations) as if SwiftX Meydan were a party to this Agreement.

SwiftX Meydan confirms it holds no financial services licenses in the UAE or elsewhere and will not undertake any activities requiring such licenses, including but not limited to remittance, custody, dealing in virtual assets, or lending. Any breach of this Schedule will constitute a material breach entitling Client to immediate termination without liability.

SwiftX Canada may, from time to time, integrate additional Affiliates or Authorized Delegates into the provision of technology or operational support, provided SwiftX Canada ensures seamless continuity and compliance, without such integration implying any shift in regulatory status or requiring additional disclosures. SwiftX Meydan's role may evolve in coordination with Authorized Delegates to optimize technical support, always within non-regulated bounds.